

25STCV36204 25STCV36204

County: los-angeles

Division: Civil Law and Motion

Department: 836

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Case Number: 25STCV36204 Hearing Date: June 25, 2026 Dept: 836

APPLICATION FOR WRIT OF ATTACHMENT

Date: 6/25/26

(1:30 PM)

Case: Mason Pari v. Mojgan Khalpari,
et al. (25STCV36204)

TENTATIVE RULING:

Cross-Complainants Mahnaz Pari aka Mahnaz Ahoobim Pari and
Behrooz Ahoobim's application for writ of attachment against cross-defendant Mason
Pari is DENIED.

"Notwithstanding Section 483.010 of the Code of Civil

Procedure, an attachment may be issued in any action for damages pursuant to [Welfare
and Institutions Code] Section 15657.5 for financial abuse of an elder or
dependent adult, as defined in [Welfare and Institutions Code] Section
15610.30. The other provisions of the Code of Civil Procedure not inconsistent
with this article shall govern the issuance of an attachment pursuant to this
section. In an application for a writ of attachment, the claimant shall refer
to this section. An attachment may be
issued pursuant to this section whether or not other forms of relief are
demanded." (Welf. & Inst. Code § 15657.01.)

Pursuant to CCP § 484.020(d), an application for writ of
attachment must include "a description of the property to be attached," and
"where the defendant is a natural person, the description of the property shall

be reasonably adequate to permit the defendant to identify the specific property sought to be attached.” CCP § 487.010(c) enumerates the categories of property that can be subject attachment where the defendant is a natural person.

Here, cross-complainants Mahnaz Pari aka Mahnaz Ahoobim Pari and Behrooz Ahoobim seek a writ of attachment against cross-defendant Pari Mason in the amount of \$59,605.00 pursuant to Welfare and Institutions Code § 15657.01 by claiming that cross-defendant wrongfully retained \$51,900 from cross-complainants between 2013 to 2024, which had been tendered for the purpose of reducing the principal on the mortgage of the subject property. (Appl. ¶¶ 8-9; MPA at pg. 1.) Upon review of the application, the Court finds that it is procedurally defective because cross-complainants have not complied with CCP § 484.020(d) as the application fails to provide a description of the property that cross-complainants seek to attach. Because a writ of attachment is a special statutory remedy, courts have found that the statutory requirements must be strictly followed. (*Gow v. Marshall* (1891) 90 Cal. 565, 567; *Yosemite Growers Co-op Ass'n v. Case-Swayne Co.* (1946) 73 Cal.App.2d 806, 811.)

Accordingly, because cross-complainants failed to strictly comply with CCP § 484.020(d), the writ of attachment is DENIED.